

Employee Salary & Wages Protection Rights

Statute: Payment of Wages Act 1936 & Industrial Disputes Act 1947 | Category: Employment & Labor

EMPLOYEE WAGE PROTECTION & UNPAID SALARY REMEDIES

1. MANDATORY TIMELY PAYMENT OF SALARY:

Under the Payment of Wages Act 1936, wages must be paid before the 7th or 10th day of the follo

2. REMEDIES FOR UNPAID SALARY & DUES:

If an employer fails or refuses to pay salary, the employee has multiple statutory remedies:

- Issue a formal Legal Demand Notice giving 15 days to clear pending dues.
- File a claim before the Labor Commissioner under Section 15 of Payment of Wages Act for recov
- Approach the Labor Court under Section 33C of Industrial Disputes Act 1947 for recovery of mo
- File a complaint before the National Company Law Tribunal (NCLT) under Insolvency and Bankrup

3. WRONGFUL TERMINATION & NOTICE PERIOD:

Employers must provide contractual notice period or salary in lieu of notice before termination